



Regulations governing the conferral of doctor's degrees

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OFFICE OF DOCTORAL PRESENTATIONS AND ACADEMIC CEREMONIES

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Introduction

The following Regulations governing the conferral of doctor's degrees were adopted on 10 May 2021 by the Doctorate Board of Eindhoven University of Technology and will enter into force on 1 September 2021.

In case of questions or if anything is unclear, you are advised to consult the Office of Doctoral Presentations and Academic Ceremonies in time. Contact details may be found on the back cover of this brochure.

Chapter I: **General provisions**

Art. 1. In these regulations the following terms and definitions will apply:

university:	Eindhoven University of Technology;
department:	a department of Eindhoven University of Technology;
doctoral:	the person who by virtue of the provisions of Article 7.18,
candidate:	paragraph 2 or 3 or Article 17a.18 of the Higher Education and Research Act (<i>Wet op het hoger onderwijs en wetenschappelijk onderzoek</i> ; hereinafter called WHW) is eligible to receive a doctor's degree;
professor:	a professor appointed at a Dutch university or the Open University or at a foreign university, including the former professor of the university who by virtue of Article 9.19, paragraph 3 WHW still has the right to act as a promotor;
promotor:	the professor, former professor, or doctorate-holding associate professor affiliated with the university, appointed as such by the Doctorate Board with due observance of the provisions of Article 7.18, paragraphs 4 and 5 and Article 9.19, paragraph 3 WHW;
copromotor:	the person appointed as such by the Doctorate Board;
dissertation:	a scientific treatise on a particular topic, or a number of separate scientific treatises, some or all of which have already been made public;
technological design:	a design that has been produced through the application of appropriate theoretical knowledge and methods, accompanied by a scientific account and documentation;
dean:	the chair of a Departmental Board as referred to in Article 9.12 paragraph 2 WHW;
Doctorate Board:	the Board as referred to in Article 9.10 of the WHW.
Hora Finita:	registration and monitoring system for PhD projects of the university.

Art. 2. With respect to the subjects discussed at closed meetings as referred to in these regulations as well as to the subjects discussed during the resolution of disputes, as referred to in Chapter X of these regulations, those present are bound to confidentiality.

Chapter II. Eligibility for the doctorate

- Art. 3.**
1. By virtue of Article 7.18 WHW, anyone to whom the degree of Master has been conferred on the basis of the successful completion of the final examination of a Master program in university education, or of a Master program in higher professional education designated as such by the Minister of Education, Culture and Science, or of an accredited advanced Master program in university education or in higher professional education, is eligible to take a doctor's degree.
 2. Apart from the persons to whom the degree referred to in paragraph 1 has been conferred, Article 17a.18 WHW (transfer right) provides that anyone is eligible to take a doctor's degree:
 - * who on or before 31 August 2002 was in possession of a certificate testifying to the successful completion of a final examination, connected with a program with a study load of at least 168 old credits or 240 ECTS credits, or
 - * who, as regards programs with a study load of more than 168 old credits or 240 ECTS credits referred to in Article 7.4 paragraph 3 of the WHW, successfully completed a final examination on or before 31 August 2002 that concludes a part of the program equivalent to at least 168 old credits or 240 ECTS credits.
 3. In special cases persons whose degree program differs from the program described above may be eligible to take a doctor's degree by obtaining a resolution adopted by the Doctorate Board granting an exemption from this program requirement¹.
- Art. 4.**
1. A doctoral candidate has to have a registration in Hora Finita before he can take a doctor's degree. The doctoral candidate must submit a request for permission to take a doctor's degree via Hora Finita to the Doctorate Board, not later than five months before the intended date of the defense ceremony. Upon the submission of the request the doctoral candidate must submit the CV, the publication list and the certificate proving that the degree referred to in Article 3 paragraph 1 has been conferred, or the certificate referred to in Article 3 paragraph 2 or a certified copy thereof, or the proof of the resolution to grant an exemption from the program requirement referred to in Article 3, paragraph 3.
 2. The doctoral candidate must support the request for permission to take a doctor's degree with a brief description in English of the work, the methods used for it and the results deemed relevant.
 3. The request for permission to take a doctor's degree must be accompanied by the letter of intent of the professor(s) or doctorate- holding associate professor(s) affiliated with TU/e to act as promotor(s). The promotor(s) must also submit via Hora Finita a proposal for the composition of the entire Doctorate Committee as referred to in Chapter III.
 4. The request must be accompanied by the CV and the publication list of the doctoral candidate.
- Art. 5.**
1. The Doctorate Board decides within one month (not counting the period from the beginning of July until mid-August) after the submission of the request as referred to in Article 4. The decision is communicated in writing to the doctoral candidate, the promotor(s) and the other members of the Doctorate Committee, and is valid for a period of 5 years. With this decision a provisional date for the defense ceremony will be issued following a request from the promotor.
 2. If the approval of the request as referred to in Article 4 is withheld, this decision and the reasons for it will be communicated in writing with reference to the regulations on disputes referred to in Chapter X of these regulations.

¹For the relevant procedure see the "Commentary on the Regulations governing the conferral of doctor's degrees".

Chapter III. The designation of the members of the Doctorate Committee

- Art. 6.**
1. The Doctorate Committee consists of:
 - a. the promotor(s) ;
 - b. the copromotor(s) ;
 - c. chair, designated pursuant to Article 9, paragraph 1; the the chair of the Doctorate Committee is not a member of the Committee. The role of the chair is to lead the defense ceremony and the deliberations;
 - d. the other members, designated pursuant to Article 10, paragraph 1;
 - e. if necessary advisers as referred to in Article 12.
 2. a person is affiliated both with TU/e and another university, the affiliation with TU/e determines whether that person is a voting member or has an advisory voice.

The persons referred to under a must be professors, or doctorate- holding associate professors who are affiliated with TU/e, and those referred to under c must be professors affiliated with TU/e. The persons referred to under b may be professors or are entitled to bear the degree of doctor or Doctor of Philosophy, in accordance with Article 8, paragraph 2.

The persons referred to under d must be:

 - * professors at a university in the Netherlands or abroad;
 - * or associate professors at a university in the Netherlands or abroad;
 - * or otherwise be deemed by the Doctorate Board to be sufficiently competent to be a member of the Committee, such as Dr.habil or senior lecturer. For the benefit of the designation as member of the Doctorate Committee of this so-called "expert" the first promotor must submit a proposal stating reasons, as well as a curriculum vitae and a publication list of the person involved. This proposal must be accompanied by a positive recommendation by the dean of the relevant department. Until five years after their honorable discharge, professors can hold a seat on the Committee referred to under d.
 3. At least half of the voting members of the Doctorate Committee must be professors.
 4. The persons referred to in paragraph 1 under a and d are voting members of the Committee. If a copromotor is a professor or associate professor at a Dutch university, or a professor or associate professor at a foreign university, that person is also a voting member of the Doctorate Committee. If that person does not satisfy this requirement, this person is a member of the Committee with an advisory voice.

The entire Doctorate Committee consists of at least 5 persons, of whom at least 4 are voting members. If there are only 4 voting members, an additional member will be appointed as a reserve voting member on behalf of the university.
 5. At the suggestion of the (first) promotor and with the consent of the Rector and the dean of the relevant department the Doctorate Board may deviate from the provisions of paragraph 4.
- Art. 7.**
1. The Doctorate Board designates a professor or a doctorate-holding associate professor from the university as first promotor after consultation with the person concerned.
 2. If necessary the Doctorate Board also designates a second promotor.
 3. The promotor has the duty to supervise the doctoral candidate in the realization of the dissertation or technological design.
 4. If a professor from another university should be designated as first promotor by the Doctorate Board by way of exception, the Doctorate Board will designate a professor or a doctorate-holding associate professor from the university as second promotor.
 5. The department in which the first promotor is employed, respectively the department of the second promotor if the first promotor is not affiliated with the university², will be referred to in these regulations as the relevant department.
 6. Honorably discharged professors will retain the right to act as promotor for five years after they have been so discharged.

² The phrase "affiliated with the university" may also be understood to mean a professor formerly employed by the university (not longer than five years ago), but is now employed elsewhere or enjoying the emeritus status.

- Art. 8.**
1. The Doctorate Board may designate one or two copromotors. If two promotors are designated, at most one copromotor may be designated.
 2. Persons entitled to act as copromotor may be professors from the university, or researchers or design engineers (whether or not employed at the university), who hold the degree of doctor or Doctor of Philosophy and have expertise in the area on which the dissertation or technological design is focused.
 3. The copromotor has the task of assisting the promotor(s) in the supervision of the doctoral candidate.
- Art. 9.**
1. The Doctorate Board authorizes the dean of the relevant department to nominate the chair of the Doctorate Committee. Until five years after their honorable discharge, professors affiliated with the university can act as chair of the Doctorate Committee. The Doctorate Board can decide to extend that period.
 2. One of the members of the Doctorate Committee employed by the university, designated by mutual agreement, is secretary of the Doctorate Committee.
- Art. 10.**
1. The Doctorate Committee consists of three independent members who are not involved with the research in question. These independent members are nominated to the Doctorate Board by the dean, on the recommendation of the promotor. One or two of these independent members are not affiliated with the TU/e.
 2. When asked to evaluate a dissertation or technological design, independent members must disclose any association that poses a conflict of interest in connection with the dissertation or technological design. Recent collaborators, defined as people who have coauthored a paper or were a principal investigator on a grant with the candidate within the past 48 months, must be excluded as independent members. A conflict of interest includes a financial association or relationship that could influence the objectivity, integrity, or interpretation of an evaluation. Other examples of possible conflicts include past association as thesis advisor or thesis student, or a family relationship, such as a spouse, domestic partner, or parent-child relationship.
 3. If the dean acts as promotor, then these independent members will be nominated by the vice-dean.
- Art. 11.**
- The first promotor, or the second promotor if the first promotor is not affiliated with the university, proposes the Doctorate Committee to the dean via Hora Finita.
- The Doctorate Committee assesses via Hora Finita the quality of the proposed dissertation or technological design on behalf of the university.
- If the dean has ascertained the adequacy of the composition of the Doctorate Committee, the dean makes a positive recommendation.
- Art. 12.**
1. The Doctorate Board can on the proposal of the first promotor and on its own authority add two advisers at most to the Doctorate Committee.
 2. If advisers are added to the Doctorate Committee on the authority of the Doctorate Board, the first promotor is consulted beforehand.
 3. Advisers take part in the deliberations of the Committee; they have an advisory voice in that body.

The table below represents the possible compositions of the Doctorate Committee.

Composition Doctorate Committee in the form of a table				
Promotor(s)	1	1	2	2
Copromotor(s)	1	2	0	1
Independent members	(3, of which 1 or 2 external, 2 or 1 TU/e)			
Advisers (optional)	(at most two)			
Other voting members (optional)				

Chapter IV. The approval of the dissertation or technological design

Admission to the defense of the dissertation or technological design

- Art. 13.**
1. As soon as possible after receipt of the communication referred to in Article 5, paragraph 1 the doctoral candidate will send the text of the dissertation or the documentation of the technological design to the members of the Doctorate Committee via Hora Finita. This should happen with the approval of the promotor(s) and, if applicable, copromotors. The doctoral candidate also signs a declaration that the research or design described in the dissertation has been carried out in accordance with the TU/e Code of Scientific Conduct.
 2. The members of the Doctorate Committee can approve the text of the dissertation or the documentation of the technological design with reservation and make suggestions for amendment and/or additions to the text. If a suggestion for amendment and/or additions to the text is not taken over by the doctoral candidate, the dean of the relevant department will consult both parties.
 3. The (first) promotor will express approval of the dissertation or technological design in writing to the doctoral candidate and the dean of the relevant department. The dean will approve this on behalf of the Doctorate Board, unless in the opinion of the dean there are any details which require discussion in the Board.
 4. The independent members of the Doctorate Committee are explicitly requested to give their reasoned opinion, as part of their approval as referred to in paragraph 2, via Hora Finita.
It will be asked to comment within six weeks and to use the criterion whether the conferral of the doctorate would be defensible at their own university.
 5. In case of a negative opinion of a member of the Doctorate Committee this member cannot be removed from membership on that ground. The safeguarding of the level of the doctor's degree entails that the conferral of the doctor's degree will in such a case be precluded and that the dean of the relevant department will forthwith be notified thereof.
 6. If one or more members of the Doctorate Committee have a negative opinion about the manuscript, the resolution giving approval will be made in a meeting of the Doctorate Committee chaired by the dean of the relevant department. Those members who cannot attend the meeting will cast their substantiated votes in writing to the chair before the meeting. The Doctorate Committee must, with a maximum of one dissenting vote, adopt the resolution giving approval, otherwise the admission will be deemed to have been rejected.
If one dissenting vote is cast, this approval of the dissertation will be discussed in the Doctorate Board.
 7. If the Doctorate Board has reasonable doubt about the quality of the assessment of the dissertation by the Doctorate Committee, then the Doctorate Board can withdraw this approval and proceed to the installation of a new Doctorate Committee to have the dissertation reassessed.
- Art. 14.**
1. After the approval referred to in Article 13, paragraph 3, has been given, the dean definitively sets the date and location of the defense ceremony, if necessary after consultation with the promotor(s), the copromotor(s), if any, and the doctoral candidate.
 2. The time referred to in paragraph 1 must be at least six weeks (not counting the period from the beginning of July until mid-August) after the date of the approval referred to in Article 13, paragraph 3.
 3. Immediately after the approval referred to in Article 13, paragraph 3, the recto and verso of the title page of the dissertation or of the documentation of the technological design must be presented to the Rector for approval via Hora Finita; the English summary stating above the text the English title of the dissertation or technological design and the curriculum vitae of the doctoral candidate must be delivered. It must be stated on the verso of the title page that the promotor(s) have given their approval to the dissertation or technological design, stating the name/names of the promotor(s) and if applicable the name/names of the copromotor(s), as well as the names of all other members of the Doctorate Committee. For the chair it will be sufficient to state the indication "chair" if this name is not known in good time. In addition it must be stated: "The research or design described in this dissertation has been carried out in accordance with the TU/e Code of Scientific Conduct."
After the approval has been given no alterations may be made on the recto and verso of the title page, nor in the contents, nor in the layout.
 4. After the approval, referred to in Article 13, paragraph 3 and Article 14, paragraph 3 has been given, the dissertation or the documentation of the technological design may be reproduced.

Chapter V. The dissertation or technological design and the propositions

- Art. 15.**
1. The dissertation should be a proof of the doctoral candidate's capability to do independent research. The dissertation may consist of a scientific treatise on a particular topic, or a number of separate scientific treatises, some or all of which have already been made public. The candidate should have made an essential contribution to the research described in the dissertation. If one or more of parts of the dissertation has/have been written or manufactured by several authors, it must be made sufficiently clear to external evaluators what is the essential contribution by the doctoral candidate. The research described in the dissertation must make an original contribution to the further development of existing scientific knowledge.
 2. A technological design is understood to mean a design that has come into being through the application of appropriate theoretical knowledge and methods, accompanied by a scientific account and documentation. The technological design must make an original contribution to the further development of existing scientific knowledge.
 3. In case the dissertation or technological design consists of a number of separate scientific treatises, or constituent designs, the different scientific treatises or constituent designs must all relate in a sufficiently coherent manner to a particular topic and be accompanied by a summary chapter.
 4. The dissertation or technological design must be accompanied by:
 - a. a short curriculum vitae;
 - b. a summary in English approved by the first promotor, stating above the text the English title of the dissertation or technological design;
 - c. the title page, approved by the Rector.
- Art. 16.**
1. Propositions may be added to the dissertation or technological design. If propositions are added, at least six of these must not be related to the topic of the dissertation or technological design, apart from the propositions about the dissertation. Four of these propositions must be of a scientific and technical nature and two of a general social nature. Propositions must express the opinion of the doctoral candidate and must therefore not be mere quotations.
 2. The contents of propositions must be such that it is possible to discuss them with the Doctorate Committee.
 3. The propositions must include references to literature or state sources wherever possible.
 4. After the first promotor has made a statement that the first promotor considers the propositions defensible, the doctoral candidate will (through the Office of Doctoral Presentations and Academic Ceremonies) send the propositions to the Rector for approval at least six weeks prior to the date of the defense ceremony. The Rector will ensure that propositions are not unnecessarily offensive to persons or groups of persons and that they cannot damage the reputation of the university.
- Art. 17.** The dissertation or the documentation of the technological design and the accompanying propositions are written in Dutch or English. In all cases an English translation of the title and a summary of the contents in English will be added to this, stating above the text the English title of the dissertation or technological design.
- Art. 18.** The dissertation or the documentation belonging to the technological design must be printed³.
- Art. 19.** It is not permitted to include any advertisements in the dissertation or the documentation of the technological design.
- Art. 20.** The dissertation or the documentation of the technological design may include suitably discreet acknowledgements, to be discussed with the first promotor.

³ For the conditions pertaining to this, please contact the Office of Doctoral Presentations and Academic Ceremonies.

Chapter VI. The distribution of the dissertation or the documentation of the technological design

- Art. 21.** 1. The printed version of the dissertation or the documentation of the technological design and the propositions, if any, must be sent to the chair of the Doctorate Committee and to each of the members of the Doctorate Committee at least two weeks prior to the date of the defense ceremony, the text in PDF-format four weeks prior; if these requirements are not satisfied, the date of the defense ceremony may be postponed on the authority of the Rector.
2. The doctoral candidate must also take care of the further distribution of the dissertation, or of the documentation of the technological design with due respect for the relevant guidelines⁴.

⁴ See also the "Commentary on the Regulations governing the conferral of doctor's degrees".

Chapter VII. The defense ceremony

- Art. 22.** 1. The defense ceremony takes place in public in the presence of the Doctorate Committee as referred to in Article 6.
2. Anyone who wishes to oppose the doctoral candidate who is not on the Doctorate Committee must, at least three weeks prior to the date of the defense ceremony, submit a written request to that effect to the Rector, stating the subject of the question or stating the reasons for doing so.
3. An opponent as referred to in paragraph 2 must have a doctor's degree.
4. The Rector will inform the person who has submitted the request referred to in paragraph 2, whether permission will be granted or not.
- Art. 23.** The Rector, the deputy of the Rector or the person designated thereto by the Doctorate Board, will chair the public session in which the dissertation or technological design and propositions, if any, are defended. The chair will determine the order in which the appropriate persons will oppose the doctoral candidate. The session will begin with a presentation of approximately 10 minutes by the doctoral candidate, after which first of all the members and advisers, if any, of the Doctorate Committee will oppose (approximately 10 minutes each) and subsequently, if time permits, the (co-) promotor(s).
- Art. 24.** 1. The defense ceremony will end one hour after the commencement of the public session and will take place in Dutch or English.
- Art. 25.** 1. After suspension of the public session the Doctorate Committee will, on behalf of the Doctorate Board, take the decision on the conferral of the doctor's degree or Doctor of Philosophy in a closed meeting.
2. The decision on the conferral of the doctor's degree or Doctor of Philosophy will be taken with due observance of the earlier decision of the Doctorate Committee as referred to in Article 13 and the defense of the dissertation or technological design and the propositions, if any, by the doctoral candidate, by vote if necessary. If the votes are equally divided, the doctor's degree or Doctor of Philosophy will not be conferred.
- Art. 26.** 1. After reopening the public session the chair will communicate the decision as referred to in Article 25 paragraph 2 to the doctoral candidate. Thereby the chair will point out the rights and duties connected with the doctor's degree.
2. As proof that the doctor's degree or Doctor of Philosophy has been conferred the doctor will receive a certificate drafted in Dutch or English, signed by the (acting) Rector, the promotor(s), and the (co-) promotor(s), if any, as well as by the remaining members of the Doctorate Committee (present at the meeting).
3. At the request of the doctoral candidate a declaration can be provided drafted in English, stating that the relevant person has received the doctor's degree at the university, and listing the (co-) promotor(s), the title of the dissertation or technological design and the date of the defense ceremony.

Chapter VIII. The Cum Laude arrangement

- Art. 27.** 1 The members of the Doctorate Committee, except the (co-) promotor(s), will be asked as a matter of course via Hora Finita whether they consider the thesis worthy of being awarded Cum Laude using the same criteria as the Cum Laude Committee. If this is the case, a brief written justification (about 5 lines) will be requested from the committee members using the same questions as given to the experts by the Cum Laude Committee⁵. They also will be asked to provide names of experts to be consulted by the Cum Laude Committee. For each member, the assessment and possible motivation will be shared confidentially with the Dean of the department concerned only. If a clear majority of the above members of the committee are of the opinion that the thesis is worthy of being awarded Cum Laude, the Dean may propose to the first supervisor that an application be submitted in writing to the CLC, stating the reasons for awarding the doctorate Cum Laude. The proposal must be turned in not later than 6 weeks before the defense ceremony to the secretary of the Cum Laude Committee.
2. The Cum Laude Committee will be heard about such a proposal. This committee is chaired by the Rector and further consists of nine professors from the university, appointed for a term of four years by the Doctorate Board. The members may be reappointed once.
3. The Cum Laude Committee checks the proposals for the following criteria:
- * is there a clearly set goal and how is that goal attained yes or no;
 - * is there evidently a matter of innovative research;
 - * has the text been written clearly and to the point;
 - * what is the doctoral candidate's own contribution to the dissertation or technological design;
 - * what impact will the dissertation or technological design have on the field of study;
 - * does the dissertation present an excellent analysis;
 - * does the dissertation belong to the top 5% within the field of research;
 - * is the research published in leading journals;
 - * is the doctorate finished within the time period established for it.
4. The Cum Laude Committee must approve the proposal, with at most one dissenting vote, or it will be rejected. No abstentions are permitted. The decision of the Cum Laude Committee will be brought to the notice of the members of the relevant Doctorate Committee not later than one week before the defense ceremony.
6. After the defense ceremony has ended the Doctorate Committee will decide by ballot on the proposal to award the designation Cum Laude, this being after the decision to confer the doctor's degree has been taken. In the voting procedure about the Cum Laude there can be one dissenting vote at the most. No abstentions are permitted.
7. All persons involved must observe strict confidentiality in the entire procedure.
8. If there is a possibility of the degree being conferred Cum Laude, two certificates will be prepared, one with and one without the designation Cum Laude. The unused certificate will be destroyed immediately after the deliberations.

The detailed procedure is available on www.tue.nl/promoties.

⁵ Please reflect on the following issues in your judgement of the candidate's thesis:

- Novelty: Is the research described in the thesis innovative in an exceptional way?
- Clarity: Is the thesis clear and to the point?
- Independence: How do you judge the candidate's personal contribution?
- Impact: How would you judge the (potential) impact of the work?
- Quality: Is the analysis presented in the thesis outstanding?
- Dissemination: Has the candidate published in leading journals and/or presented the work at leading international conferences within the relevant field of research in an outstanding way?
- Classification: Compared to PhD theses in your own field of research (internationally), how would you rate this thesis? top 5% / top 10% / probably not within the top 10%
- Confidence: Based on your own expertise, how confident are you in judging the thesis?
- Comments: Do you have any other observations which might be relevant for the cum laude distinction?

Chapter IX. Conferral of a double or joint doctorate, as well as the joint supervision doctorate

- Art. 28.** Pursuant to an agreement concluded between the university and a (Dutch or) foreign university, which must be signed by the Rectors of both universities involved prior to the first doctorate trajectory, but not later than one year after the doctorate trajectory has commenced, a doctoral candidate may take a doctor's degree at each of the two universities. The conditions under which such a double or joint doctorate can take place are regulated further in this agreement. The agreement must be uploaded to Hora Finita by the doctoral candidate as soon as it is signed.
- Art. 29.** The conditions as referred to in Article 28 concern the following items in any case:
- * the research is carried out under the responsibility of two promotors, one at each university;
 - * the dissertation or technological design is defended first at the university before a mixed Doctorate Committee, proportionally composed of members on behalf of the two universities, as well as one or two independent members from outside both universities; if desired by the other university, a second defense ceremony can take place there; the Rector can (under certain conditions) give permission to deviate from this rule;
 - * the dissertation or technological design is written in (Dutch or) English;
 - * the preparation time for the dissertation or technological design is divided proportionally between the two universities in alternating periods. Deviations from this are permitted only if the reasons therefor are stated.
- Art. 30.** Insofar as the agreement referred to in Article 28 does not provide otherwise, the double doctorate will take place at the university pursuant to the provisions of the university's Regulations governing the conferral of doctor's degrees.
- Art. 31.** As proof that the doctor's degree has been conferred on the basis of a double doctorate, the certificate referred to in Article 26 will include a declaration that the conferral of the doctorate is taking place in cooperation with the other university. The other university involved will also provide a certificate with an identical declaration. In case of a joint doctorate, one certificate bearing the logos of both universities will be provided.
- Art. 31 a.** A joint supervision doctorate is initiated on the basis of an agreement between the university and one or more (Dutch or) foreign universities, which can be signed by the deans of the faculties involved prior to the first doctorate trajectory or as soon as possible after its start, but not later than one year after the doctorate trajectory has commenced. The agreement must be uploaded to Hora Finita by the doctoral candidate as soon as it is signed.
- The joint supervision doctorate is a doctorate at TU/e or at one of the affiliated partner institutes, which involves, in one or more stays, a total of 6 to 12 months spent at the partner institute. If the doctorate is at TU/e, the doctoral candidate will have a TU/e promotor, as well as a (co-) promotor at each of the partner institutes. The university's regulations governing the conferral of doctor's degrees are further fully applicable. If the doctorate is at a partner institute, the doctoral candidate will have a promotor there and a TU/e (co-) promotor. The partner institute's regulations governing the conferral of doctor's degrees are further fully applicable. A Doctoral Project Description will be drawn up at least six months before the stay at the host university. This will be sent for approval to the Dean of the Graduate School.

Chapter X. Regulations on disputes

- Art. 32.** 1. If during the preparation for the defense ceremony a dispute arises concerning the quality of the dissertation or technological design that cannot be resolved in joint consultation, the dean of the relevant department will serve as mediator at the request of one of the parties.
If the dean is a member of the Doctorate Committee, the deputy of the dean will perform this task.
2. As soon as possible, but within one month at the latest, the dean of the relevant department will notify all parties concerned of the recommendation in writing.
3. If this mediation does not result in agreement within one month, one party or both parties may turn to the Rector, in writing.
- Art. 33.** 1. The Rector will turn the matter over to the Doctorate Board, requesting that an appeals committee be set up.
2. The appeals committee consists of at least three professors, with each party appointing one, as well as the Rector or a member of the Doctorate Board.
3. The committee may be expanded if the Rector deems this necessary.
- Art. 34.** 1. The appeals committee will hear all persons involved and will within six weeks issue a recommendation to the Doctorate Board in the form of a draft decision stating reasons. This draft decision must take into account the interests of the doctoral candidate and the responsibility that the (co-) promotor(s) and the dean carry by virtue of their duties.
2. The Doctorate Board may only deviate from the recommendation of the appeals committee for compelling reasons.
3. The Doctorate Board will notify the parties of its reasoned decision.

Chapter XI. **Transitional and final provisions**

Art. 35. In cases not provided for by these regulations, the matter will be decided by the (acting) Rector.

Art. 36. These regulations were adopted in the meeting of the Doctorate Board held on 10 May 2021.

Schedule for preparation for defense ceremonies

Time	Action/decision	By	Article
Well in advance	Request for exemption from the program requirement for candidates with a foreign previous education and request for a decision in principle for candidates with a higher professional education (hbo) diploma	doctoral candidate/ intended promotor	3.2
At least five months before the desired date of the defense ceremony	Submit request for permission via Hora Finita:	doctoral candidate/ promotor	4.1
	* Description of the research including methods used		4.2
	* Promotor approves request for permission to take a doctor's degree		4.3
	* Proposal composition Doctorate Committee		4.3
	* CV and publication list		4.4
Soon after that	Notification of decision on permission	Rector	5.1
At least six weeks before the desired date of the defense ceremony	Doctorate Committee approves dissertation or technological design and first promotor submits proposal	promotor	13.3 and 14.1
	Proposal Cum Laude, if applicable	Dean/promotor	27.1
	Definitive date defense ceremony	Dean authorized by Doctorate Board	14.1
	Approval of recto and verso of title page	Rector	14.3
At least six weeks before the date of the ceremony	Confirmation approval of proposal	Rector	14.1
	Submit propositions, if any, to Rector	doctoral candidate	16.4
At least two weeks before the definitive date of the defense ceremony	Dispatch of the dissertation/ documentation technological design and propositions, if any, to the members of the Doctorate Committee, others and library	doctoral candidate	21.1 and 21.2
One week before the date of the defense ceremony	Dispatch decision Cum Laude Committee to the members of the Doctorate Committee	Rector	27.5

More information can be found at:

<https://www.tue.nl/en/our-university/about-the-university/support-services/general-affairs/office-of-doctoral-presentations-and-academic-ceremonies/phd-defenses/information-brochure>

Commentary on the Regulations governing the conferral of doctor's degrees

The TU/e Regulations governing the conferral of doctor's degrees are based on the statutory provisions of the Higher Education and Research Act (*Wet op het hoger onderwijs en wetenschappelijk onderzoek; WHW*).

Under the WHW, eligibility to act as promotor accrues either to a professor of a Dutch university or of the Open University or to a professor of a foreign university or to a professor occupying an endowed chair. Former professors may also act as promotor within five years after they have been honorably discharged. Former professors retain the right for five years to act as voting members of the committee (WHW Art. 9.19, para. 3). After that their voting membership is granted only in exceptional cases.

Additionally the WHW sets out that also other employees who hold a doctorate, and who in the judgment of the Doctorate Board are duly qualified, can be designated as promotor. At TU/e it has been decided to limit this to associate professors with a doctorate. The provisions in article 9.19, paragraph 3 WHW do not apply to them. Deans can submit associate professors in possession of a doctorate (who they consider qualified to act as a promotor) to the Doctorate Board on behalf of their department prior to the beginning of the first doctorate trajectory for which they would act as promotor. At the beginning of the doctorate trajectory it must be clear who the intended promotor(s) is/are. More information about the procedure concerning the awarding of the *ius Promovendi* to associate professors can be found in the Appointment procedures for full professors, associate professors and fellows.

The Doctorate Board appoints at most one person as "expert" (i.e. a member who is not a professor nor an associate professor) to a committee. This expert must hold a doctor's degree. Assistant professors cannot be designated as "expert"; if it is deemed desirable to give an assistant professor a position in a Doctorate Committee, designation as (co-) promotor or as adviser may be considered. Others who are not eligible to join the Doctorate Committee and who have clear expertise in (a part of) the area covered by the dissertation or technological design may also be eligible to serve as adviser.

If a promotor not affiliated with the university (guest promotor) is designated, the Doctorate Board designates a professor from inside the university as second promotor who may *inter alia* lend assistance to the doctorate procedure of this institution.

The Doctorate Board will only agree to a combination of a first and second promotor (professor) from outside the university in exceptional cases. Considering that the system for approval of doctoral dissertations is largely based on trust in the promotors (first and second), it is undesirable that both promotors are not (or no longer) employed by the university. This provision applies in particular to those cases in which the first promotor is not affiliated with the university and the second promotor is employed by the university or has left the university no longer than five years before and is now working elsewhere or has retired. In those cases, the Doctorate Board will ask the dean for a separate, written motivation.

The doctoral candidate's CV, including a list of publications, will be added to the request for admission to the defense ceremony. This supplement can, in case of unusual situations (in particular regarding external doctoral candidates who are not known at the university) serve as a warning signal and give the dean cause for greater caution. The doctoral candidate is responsible for providing this CV. The Doctorate Board can ask the dean for inspection of the doctoral candidate's CV. In case of doubt the dean will ask the first promotor for the short CV of an external member of the Doctorate Committee. The Doctorate Board can ask the dean for inspection of the CV.

The dissertation or technological design is not officially definitive until the Doctorate Committee has made the decision referred to in Article 13, paragraphs 3 and 4.

It is of the greatest importance that all parties involved in the procedure observe the prescribed deadlines. The schedule accompanying these Regulations may be helpful in keeping track of these deadlines.

The most important decisions involved in the process are:

- * the decision of the Doctorate Board to grant permission to take a doctor's degree, as well as the designation by this Board of the promotor(s) and copromotor(s), and the designation of the members of the Doctorate Committee to be set up;
- * the approval by the promotor(s) of the dissertation or technological design and acceptance thereof as proof of the doctoral candidate's ability to work independently in the relevant scientific field, as well as the decision by the promotor(s) to allow the doctoral candidate to defend the candidate's views on the basis of the dissertation or technological design;
- * the conferral of the doctor's degree or the doctor's degree *Cum Laude* by the Doctorate Board, after the defense of the dissertation or technological design and propositions, if any, in the presence of the Doctorate Committee, consisting of at least 5 voting members (see Article 6.4).

In this connection it is important to note that Article 21.1 entitles the Rector on the Rector's own authority to move the date of

the defense ceremony if the final version of the dissertation or the documentation of the technological design is not sent to all members of the Doctorate Committee in time.

Article 3, paragraph 3 deals with the decision to grant exemption from the program requirement. In such cases the Doctorate Board is advised by the relevant Master's examining board. This latter board has to seek the (preliminary) advice of Education and Student Affairs (ESA) (degree appraisal) and/or, through that office, of NUFFIC. The Doctorate Board has authorized the Rector to take the relevant decisions.

It should be noted that persons previously educated outside the Netherlands whose educational background would not make them eligible to take a doctor's degree in their "own" country, will in general not be admitted to the university either. In highly exceptional cases (involving a previous education in or outside the Netherlands) the Rector is authorized by the Doctorate Board to appoint a small committee that will make a preliminary judgment as to whether admission may be justified. The final decision on such matters will be made by the Doctorate Board. In such cases the Doctorate Board will hear the examining board of the relevant department.

Persons who hold an old-style (before 1 September 2002) Dutch higher professional education (hbo) diploma are advised to request "admission in principle" well in advance, preferably before the actual start of the doctoral research or technological design. The point of departure in such a case is that under the WHW someone with an hbo diploma may in principle be eligible to take a doctor's degree. In that context it is important that the candidate should have enough experience with scientific research to complete the doctor's degree program successfully. On the basis of the candidate's curriculum vitae, a list of publications and a recommendation of the intended promotor the feasibility of this admission may be assessed in advance.

'Author Contribution Statements', which are required by many journals (e.g., *Nature*, *PNAS* and many journals in the medical sciences), may serve as a guideline for clarifying the contribution by the doctoral candidate, required in Article 15.1.

Article 21.2 (distribution of the dissertation or documentation of the technological design) deals with the applicable conditions. In summary, copies should go to the following persons or places:

- * the Doctorate Committee;
- * department (number to be determined in consultation with the promotor);
- * library: 2 copies;
- * 1 digital copy for Cursor;
- * digital version dissertation or documentation of the technological design for the library.

Confidential business information may be included in a confidential appendix to the dissertation or technological design. This confidential appendix does not form part of the formal dissertation or technological design and is not the subject of the deliberations in the Doctorate Committee. Consequently it is not considered in the assessment of the dissertation or technological design.

It is allowed to include the logos of scientific organizations and/or research schools in the dissertation, provided that they are modest in size and in black and white.

TU/e has the possibility (in exceptional cases) of both a double and a joint doctorate because joint doctorates are not yet legally possible in all countries. Cooperation partners may have a preference for one of the two types. In case of a double doctorate there are two doctoral degree certificates referring to each other. In case of a joint doctorate there is one certificate bearing two logos.

In addition, TU/e offers the possibility of a Joint Supervision Doctorate. This is a doctorate at TU/e or at one of the affiliated partner institutes that involves a stay of 6 to 12 months in total at a "host" university (or universities); in the dissertation it is stated that it concerns a Joint Supervision Doctorate with reference to the university (or universities) involved, and an attachment is added to the certificate with an indication of the host arrangement of the joint universities involved. A "Doctoral Project Description" is drawn up at least six months before the stay at the "host university". This is sent for approval to the Dean of the Graduate School.

In principle four years is required for a doctorate at TU/e, and this applies to double and joint doctorates as well. In the case

of both a double and a joint doctorate, approximately half of the required time is spent at each of the two participating universities.

In special cases the Doctorate Board can deviate from this standard, provided that the quality of the dissertation can be assured by other means, and that the doctoral candidate has sufficient time to meet these quality standards. Considerations for these “special cases” can be, for instance: the quality of the partner university, the instruction that the candidate has already followed at the PhD level, available funding to finance any possible extension, and/or research that the candidates have already done during the Master phase.

Education must definitely form part of the doctorate trajectory (e.g. professional skills), but must not comprise more than 30 ECTS.

If there are more parties involved in a consortium, TU/e accepts responsibility only for those doctorates in which TU/e is actually involved. When a TU/e doctoral candidate has spent a year elsewhere, this is a Joint Supervision Doctorate. This is not a double or joint doctorate but a TU/e doctorate. When a doctoral candidate from another university has stayed here for one year, it is a doctorate of that other university, in which case it can also involve a Joint Supervision Doctorate.

In principle, then, there are three possible scenarios:

- 1) Eindhoven bears the primary responsibility for the research,
- 2) Eindhoven, together with the partner institute, bears joint responsibility for the research and
- 3) The partner institute bears the primary responsibility for the research. Only in the first two cases can an Eindhoven double or joint doctorate be conferred. In the third case only a Joint Supervision Doctorate is possible.

In case of double or joint doctorates a cooperation agreement is sent to the Doctorate Board for a decision prior to the first doctorate trajectory or as soon as possible after its start, but not later than one year after the doctorate trajectory has commenced. In the case of a positive decision by the Doctorate Board, the cooperation agreement between both universities involved is signed by the Rectors of both universities.

Draft agreements are checked by the educational lawyer prior to their being put on the agenda of the Doctorate Board, and are then added to the agenda of the Doctorate Board by the Dean of the Graduate School.

The Rector may allow deviations from the above provisions.

In principle the dissertation is defended first at TU/e (a requisite condition for joint doctorates for government financing). The Rector can grant permission to deviate from this rule.

Below you find a step-by-step plan that can be followed.

Step	Action	Who	When	Approval
1 Cooperation agreement	Set up joint research program + cooperation agreement	Program leaders partner institutes	Before commencement research ⁶	Rector
2 Definition doctorate project	Definition of a research/doctorate project within the framework of the aforementioned research program	Intended 1 st promotor	Before commencement research	Program leader
3 Definition supervision path	Determine "first" and "second" promotor, determine residence and supervision structure, lay down in draft Training and Supervision Plan (TSP)	Intended 1 st promotor	Before commencement research	Program leader
4 Selection candidate	Selection of a candidate, suited for the project, establish "prior knowledge" and elaborate TSP ⁷	1 st promotor	Before commencement research	Program leader
5 Commencement research	Submission request + TSP to Doctorate Board (DB), proposal role TU/e with regard to conferral of doctorate ⁸	1 st promotor	Upon commencement of research, but not later than five months before the intended date of the defense ceremony	Rector, via DB
6 Determine progress of research	Establish whether the results obtained so far justify the expectation that a doctorate of adequate quality ⁹ is feasible within the set period, adjustment/elaboration in TSP	Doctorate Committee	Between 32 and 36 months after commencement of research	Doctorate Committee
7 Approval dissertation	Approval of dissertation according to contents, quality and contribution of partner institutes involved; proposal for conferral yes or no of Eindhoven degree of doctor	Dean authorized by DB	Around 42 months after commencement of research, but not later than six weeks before the intended date of the defense ceremony Rector, via DB	Rector, via DB
8 Defense	Public defense of the dissertation, firstly in Eindhoven. Conferral of the double or joint degree of doctor	Doctoral candidate	Around 48 months after commencement of research	Doctorate Committee

⁶ The ratification of the joint research program and the relevant cooperation agreement by the Rector takes place not later than 1 year after commencement of the research.

⁷ Wherever the duration of appointment of the proposed TSP differs significantly from the appointment provided in the program, it will be necessary to obtain approval also from the Departmental Board involved with regard to the financial consequences.

⁸ In principle there are three possible scenarios: 1) Eindhoven bears the primary responsibility for the research, 2) Eindhoven, together with the partner institute, bears joint responsibility for the research and 3) the partner institute bears the primary responsibility for the research. Only in the first two cases can an Eindhoven double or joint doctorate be conferred; in the third case a Joint Supervision Doctorate is possible.

⁹ A unique research contribution, comparable in size and quality to the results obtained by a "standard TU/e doctoral candidate" in case of a regular appointment of 48 months.

Protocol defense ceremony

The protocol takes place with or without two seconds being present.

1. Dress

Professors:

cap and gown, white blouse or white shirt with grey tie, dark suit, black shoes.

Non-professors:

dark suit or morning coat, white blouse or white shirt with grey tie, black shoes.

Beadle:

cap and gown, grey tie, black shoes.

Doctoral candidate and seconds:

dress suit or dark suit, white blouse, black shoes.

N.B. Any participants in the ceremony who are not from the Netherlands may also wear the attire that would be appropriate on a comparable occasion in their own countries.

2. Audio and video recordings

Audio and video recordings are permitted during the defense ceremony, as long as they are not disturbing (i.e. do not walk around, except during the presentation of the degree).

3. Overview of the ceremony

a. **Twenty minutes** before the session commences:

the Doctorate Committee meets in a Committee Room.

The chair determines the order in which the members and any others will oppose the candidate.

b. The beadle seats seconds, if any, accompanying the doctoral candidate behind the doctoral candidate.

For anyone opposing from the hall, places are also reserved in the first row.

c. Just before the session commences:

the Committee, preceded by the beadle, proceeds in the following order to the hall where the defense ceremony will take place: chair and secretary, promotor(s), copromotor(s) if any and the other members etc.

The doctoral candidate, seconds, if any, and all others present will rise when the Doctorate Committee enters the hall.

d. The chair of the Doctorate Committee opens the session. The chair asks the doctoral candidate to take place behind the lectern. The seconds proceed to their places, diagonally behind the doctoral candidate.

The doctoral candidate first gets the opportunity to give a summary account of the doctoral research (10 minutes at most).

The chair of the Doctorate Committee gives the floor alternately to an opponent (who expresses reservations or asks a question) and to the doctoral candidate (who answers the opponent).

The doctoral candidate addresses the opponents as follows: "highly learned opponent" (professor), "most learned opponent" (non-professor).

The promotor and copromotor are addressed as follows by the doctoral candidate: "highly learned promotor" and "most learned copromotor" respectively. The members of the Doctorate Committee address the doctoral candidate as "esteemed doctoral candidate".

e. After an hour the beadle announces, "Hora est".

The chair of the Doctorate Committee asks the doctoral candidate to take a seat in the hall and announces that the Committee will retire to deliberate further, whereupon the Committee leaves the hall.

- f. After their deliberations are complete the Committee, preceded by the beadle, returns to the hall in the following order: chair and secretary, promotor(s), copromotor(s), if any, and the other members etc.
- g. The chair of the Doctorate Committee reopens the meeting and asks the doctoral candidate to stand before the table. The seconds stand on either side of the doctoral candidate. The chair of the Doctorate Committee announces that the Doctorate Board has decided to confer the doctor's degree upon the doctoral candidate, Cum Laude or otherwise.
- h. The (first) promotor confers the doctor's degree upon the doctoral candidate. The Committee and the people in the hall sit; the first promotor, the "young" doctor and seconds, if any, stand. The (first) promotor delivers a short address.
- i. The chair of the Doctorate Committee congratulates the "young" doctor in the name of the Doctorate Board and draws attention to the rights and duties associated with the title of doctor. The (first) promotor has taken a seat. Only the "young" doctor and seconds, if any, are requested to take a seat in the hall. The session is closed by the chair of the Doctorate Committee when the "young" doctor sits down again.
- j. The Doctorate Committee leaves the hall, preceded by the beadle. The beadle then returns to fetch the "young" doctor.

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